

4 A JOINT RESOLUTION OF THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE STATE OF
5 MONTANA REQUESTING AN INTERIM STUDY OF SPECIALTY COURTS; AND REQUIRING THAT THE
6 FINAL RESULTS OF THE STUDY BE REPORTED TO THE 70TH LEGISLATURE.

21 WHEREAS, a study is necessary to determine whether the creation of a specialty court would promote
22 judicial efficiency, ensure fair outcomes for litigants, and support the district courts' ability to prioritize high-need
23 cases.

27 That the Legislative Council be requested to designate an appropriate interim committee or statutory
28 committee, pursuant to section 5-5-217, MCA, to:

1 (1) examine Montana's current judicial structure, including the scope and impact of the district
2 courts' caseloads, with a focus on family law, youth in need of care, dependency and neglect, and criminal
3 proceedings;

4 (2) review specialty court models used in other states, including courts or panels designated to
5 hear constitutional claims or claims involving state agencies and officials;

6 (3) analyze the feasibility, potential structure, jurisdiction, and implementation of a specialty court
7 in Montana for resolving constitutional and government claims;

8 (4) assess how a constitutional and government claims court might alleviate burdens on district
9 courts, enhance judicial efficiency, and improve access to justice for all Montanans;

10 (5) calculate potential caseloads for a specialty court that focuses on constitutional claims, claims
11 involving state agencies, or business claims; and

12 (6) explore where a constitutional and government claims court would hold hearings, impanel
13 juries, and perform other administrative duties.

14 BE IT FURTHER RESOLVED, that all aspects of the study, including presentation and review
15 requirements, be concluded prior to September 15, 2026.

16 BE IT FURTHER RESOLVED, that the final results of the study, including any findings, conclusions,
17 comments, or recommendations of the appropriate committee, be reported to the 70th Legislature.

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